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SECOND DIVISION

[G.R. No. 124461. September 25, 1998]

THE PEOPLE OF THE PHILIPPINES, PETITIONER, VS. THE HONORABLE JUDGE ESTRELLA T. ESTRADA, PRESIDING JUDGE, RTC, BRANCH 83, QUEZON CITY; AND AIDEN LANUZA, RESPONDENTS.

D E C I S I O N

MARTINEZ, J.:

The People of the Philippines, through this petition for review, seeks the reversal of the order of respondent Judge Estrella T. Estrada, dated December 7, 1995, which granted private respondent Aiden Lanuza's motion to quash Search Warrant No. 958 (95), as well as the order dated April 1, 1996 denying petitioner's motion for reconsideration of the earlier order.

On June 27, 1995, Atty. Lorna Frances F. Cabanlas, Chief of the Legal, Information and Compliance Division (LICD) of the Bureau of Food and Drugs (BFAD), filed with the Regional Trial Court of Quezon City, Branch 83, an application for the issuance of a search warrant against "Aiden Lanuza of 516 San Jose de la Montana Street, Mabolo, Cebu City," for violation of Article 40 (k) of Republic Act 7394 (The Consumer Act of the Philippines).

In her application for search warrant, Atty. Cabanlas alleged, among others, as follows:

> "1. On June 5, 1995, in my official capacity as Attorney V and Chief of LICD, I received reports from SPO4 Manuel P. Cabiles of the Regional Intelligence Group IV, Intelligence Command of the PNP that certain -
>
> 1.a. Aiden Lanuza of 516 San Jose de la Montana Street, Mabolo, Cebu City sold to said Officer Cabiles various drug products amounting to Seven Thousand Two Hundred Thirty Two Pesos (P 7,232.00) on May 29, 1995;
>
> 1.b. Said Aiden Lanuza or her address at 516 San Jose de la Montana Street, Mabolo, Cebu City has no license to operate, distribute, sell or transfer drug products from the BFAD;
>
> 1.c. Distribution, sale or offer for sale or transfer of drug products without license to operate from BFAD is in violation of Art. 40 (k) of RA 7394 (or 'the Consumer Act').
>
> "2. In support of the report, the subscribed affidavit of Mr. Cabiles, his report and the various drug products sold and purchased contained in a (sic) plastic bags marked

'Lanuza Bag 1 of 1' and 'Lanuza Bag 2 of 2' were enclosed; and the same are likewise submitted herewith.

xxx xxx xxx."[1] (Emphasis supplied)

The application, however, ended with the statement that the warrant is to search the premises of another person at a different address:

"3. This is executed to support affiant's application for a search warrant on the premises of Belen Cabanero at New Frontier Village, Talisay Cebu."[2] (Emphasis supplied)

In support of the application, the affidavit of SPO4 Manuel P. Cabiles, a member of the Regional Intelligence Group IV of the PNP Intelligence Command, Camp Vicente Lim, Canlubang, Laguna, was attached thereto, wherein he declared that:

"1. Upon the request for assistance by BFAD, he conducted surveillance for persons distributing, selling or transferring drug products without license to operate from BFAD.

"2. On May 29, 1995, a certain Aiden Lanuza of 516 San Jose de la Montana St., Mabolo, Cebu City sold to him various drug products amounting to P7,232.00 and

"3. Upon further verification in the BFAD registry of licensed persons or premises, the said person and place have in fact no license to operate.

"4. Earlier than May 29, 1995, affiant saw a delivery of drug products from the residence of Mrs. Lanuza in 516 San Jose de la Montana St., Mabolo, Cebu City to another person.

"5. Accompanying this affidavit are the various products sold to/and purchased by the affiant contained in two (2) plastic bags marked 'Lanuza Bag 1 of 1' and 'Lanuza Bag 2 of 2.'

"This is executed in support of the affiant's report to BFAD and for whatever legitimate purpose this may serve." [3] (Emphasis supplied)

The BFAD also submitted with the application a copy of the sketch[4] of the location of Aiden Lanuza's residence at her stated address.

On the same day the application was filed, the respondent Judge issued Search Warrant No. 958 (95), which reads in full:

"REPUBLIC OF THE PHILIPPINES
REGIONAL TRIAL COURT
NATIONAL CAPITAL JUDICIAL REGION
BRANCH 83 - QUEZON CITY

PEOPLE OF THE PHILIPPINES, Plaintiff,

- versus - SEARCH WARRANT NO. 958 (95)

AIDEN LANUZA,
Defendant.

X----------X

SEARCH WARRANT

"It appears to the satisfaction of this Court, after examining under oath Atty. Lorna Frances F. Cabanlas, Chief of the Legal Information and Compliance Division (LICD) of the Bureau of Food and Drugs (BFAD) and her witness, Manuel P. Cabiles, member of the Intelligence Group IV, Intelligence Command, PNP, Camp Vicente Lim, Canlubang, Laguna, that there are reasonable grounds to believe that a violation of Article 40(k) in relation to Article 41 of Republic Act No. 7394 (Consumer Act) has been committed or about to be committed and there are good and sufficient reasons to believe that Ms. Aiden Lanuza of 516 San Jose dela Montana Street, Cebu City has in her possession and control at said address the following described properties:

medicines and drugs of undetermined quantity among which are Bricanyl Tablet, Bisolvon Tablet, Buscopan Tablet, Buscopan Ampoule, Mucosolvan Ampoule, Persantin Tablet, Tegretol Tablet, PZA-Ciba Tablet, Voltaren Tablet, Zantac Ampoule, Ventolin Tablet, Ventolin Inhaler, Dermovate Cream, Fortum Vial, Zinacef Vial, Feldene 1M Ampoule, Norvasoc Tablet, Bactrim Forte Tablet, Rochephin Vial, Tilcotil Tablet, Librax Tablet, Methergin Tablet and Tagamet Tablet

which she is selling, distributing and transferring without the necessary license from the Department of Health.

"You are hereby commanded to make an immediate search at any time of the DAY or NIGHT of the premises above-described and forthwith seize and take possession of the undetermined amount of drugs and medicines subject of the offense and to bring the same to this Court to be dealt with as the law directs.

"You are further directed to submit a return of this Search Warrant within ten (10) days from today.

"This Search Warrant is valid within a period of ten (10) days from the date of issue.

"GIVEN UNDER THE HAND AND SEAL of this Court this 27th day of June 1995 at Quezon City.

(Sgd.)ESTRELLA T. ESTRADA

Second Vice Executive Judge"[5]
(Emphasis supplied)

On June 28, 1995, the search warrant was served at private respondent Lanuza's residence at the indicated address by a composite team of policemen from the PNP 7th Criminal Investigation Command, Camp Sotero Cabahug, Cebu City.

How the search warrant was implemented was briefly narrated in the Joint Affidavit,[6] dated June 29, 1995, of SPO2 Fructuoso Bete, Jr. and SPO2 Marckbilly Capalungan, both members of the search and seizure team. They stated in their affidavit that their team, armed with the search warrant, "conducted a raid at the premises of one AIDEN LANUZA of 516 San Jose de la Montana Street, Cebu City x x x;" that **"the raid was witnessed by Luis Rivera, Demetrio Panimdim and Francisco Ojales, both (sic) Brgy. Tanod of Kasambagan, Cebu City;"** that **"the service of the (search) warrant resulted in the confiscation of fifty-two (52) cartoons (sic) of assorted medicines from the possession and control of AIDEN LANUZA;"** and that the "said items were brought to the 7CICRO office for detailed inventory headed by Atty. Lorna F. Cabanlas, Chief of the Legal Information and Compliance Division of the BFAD, Manila."[7] (Emphasis supplied)

The present petition, however, narrates a **different** account of what actually happened during the implementation of the search warrant. Paragraph 5 of the petition states: "At the commencement of the search, the members of the team **discovered** that the **premises described as 516** San Jose de la Montana St., Mabolo, Cebu City **was actually a five thousand (5,000) square meter compound containing at least fifteen (15) structures which are either leased residences, offices, factories, workshops or warehouse.** The policemen proceeded to search **the residence of private respondent Lanuza at Lot No. 41** of said address. **Finding no drug products thereat, they proceeded to search a nearby warehouse at Lot No. 38 within the same compound** and address above stated. **This search yielded fifty-two (52) cartons of assorted drug products which were then inventoried in due course.** x x x."[8] (Emphasis supplied)

In an order[9] dated July 3, 1995, the respondent Judge noted the inventory of the seized drugs and authorized the BFAD to retain custody of the same, to have samples of the drugs analyzed and be brought to the registered drug manufacturers for parallel testing.

On August 22, 1995, private respondent Aiden Lanuza filed a verified motion[10] praying that Search Warrant No. 958 (95) be quashed and that the seized articles be declared inadmissible in any proceeding and ordered returned to the warehouse owned by Folk Arts Export & Import Company located at Lot No. 38 inside the compound at 516 San Jose de la Montana Street, Cebu City. The motion is based on the grounds that the search warrant is illegal and null and void because: (1) it was applied to search the premises of one Belen Cabanero at New Frontier Village, Talisay, Cebu, but was issued to search the residence of private respondent Aiden Lanuza at 516 San Jose de la Montana Street, Cebu City; (2) it was issued for a non-existing offense; (3) Atty. Lorna Frances F. Cabanlas was not duly authorized by applicant BFAD to apply therefor; (4) it failed to particularly describe the place to be searched and the things to be seized; (5) the applicant's witnesses had no personal knowledge of the facts upon which it was issued; and (6) its implementation was unreasonable as it was enforced on a different or wrong place which was lawfully occupied by a different or wrong person.[11]

Atty. Lorna Frances Cabanlas, who appeared for the BFAD, opposed[12] the motion to quash the search warrant, to which the private respondent countered with a reply.

After the contending parties had submitted their respective positions without further oral arguments, the respondent Judge issued the assailed order[13] dated December 7, 1995, quashing Search Warrant No. 958 (95). Accordingly, the order dated July 3, 1995 was revoked and all the articles seized were declared inadmissible in any and all proceedings against private respondent Aiden Lanuza. Also, the BFAD was ordered to return at its expense all the seized items to the warehouse of Folk Arts Import & Export Company at Lot No. 38, 516 San Jose de la Montana St., Mabolo, Cebu City within a period of fifteen (15) days from notice of the said order.[14]

Petitioner's motion for reconsideration of the December 7, 1995 order was denied in an order[15] dated April 1, 1996, impelling petitioner to file the present petition asserting that the respondent Judge erred:

> a) In holding that the defect appearing in BFAD's application for a search warrant is so "grave" in nature as to warrant quashal of the search warrant issued thereunder, considering that such variance is actually a harmless clerical error.
>
> b) In holding that Atty. Cabanlas was not authorized by the BFAD to apply for a search warrant concerning the unlicensed distribution of drugs, considering that the grant of BFAD authorization upon her to investigate fake, misbranded, adulterated or unregistered drugs necessarily contemplates the authority to investigate the unlicensed activities above noted.
>
> c) In holding that applicant BFAD had failed to discharge the burden of proving probable cause for issuance of a search warrant, by failing to present documentary proof indicating that private respondent had no license to sell or distribute drug products, considering that under the authority of Carillo v. People (229 SCRA 386) the BFAD only had the burden of proving the negative ingredient of the offense charged on the basis of the best evidence procurable under the circumstances.
>
> d) In holding that the place sought to be searched had not been described with sufficient particularity in SW No. 958 (95), considering that Aiden Lanuza's residence at Lot No. 41, 516 San Jose de la Montana St., Mabolo, Cebu City was not so conspicuously or notoriously represented to the public as such by her as to contradict the investigating and serving officers' perception of the outward appearance of her dwelling, which led them to believe that the more general address of 516 San Jose de la Montana St., Mabolo, Cebu City referred to her dwelling.
>
> e) In ordering the return of the things seized, the possession of which is prohibited.[16]

We granted the petitioner’s application for the issuance of a temporary restraining order in a resolution[17] dated June 26, 1996 and restrained the implementation of the assailed orders, effective immediately and until further orders from this Court.

Private respondent Aiden Lanuza later filed her comment[18] on the petition, but petitioner's reply thereto was not admitted by this Court in a resolution[19] dated January 13, 1997, for failure by the Solicitor General to file the same within his first extension of thirty (30) days, that was granted, but with a warning that no further extension would be given. Instead of filing his reply, the Solicitor General asked for two (2) more extensions of time, which were denied.

Now to the assigned errors of the respondent Judge raised by petitioner.

The requirements for the issuance of a search warrant are inscribed in Section 2, Article III of the 1987 Constitution, to wit:

> "SEC. 2. THE RIGHT OF THE PEOPLE TO BE SECURE IN THEIR PERSONS, HOUSES, PAPERS, AND EFFECTS AGAINST UNREASONABLE SEARCHES AND SEIZURES OF WHATEVER NATURE AND FOR ANY PURPOSE SHALL BE INVIOLABLE, AND **NO SEARCH WARRANT OR WARRANT OF ARREST SHALL ISSUE EXCEPT UPON PROBABLE CAUSE TO BE DETERMINED PERSONALLY BY THE JUDGE AFTER EXAMINATION UNDER OATH OR AFFIRMATION OF THE COMPLAINANT AND THE WITNESSES HE MAY PRODUCE, AND PARTICULARLY DESCRIBING THE PLACE TO BE SEARCHED AND THE PERSONS OR THINGS TO BE SEIZED."** (Emphasis supplied)

In quashing the subject search warrant, it is the finding of the respondent Judge that the application for its issuance suffered from a "grave" defect, "which escaped (her) attention," considering that it was applied to search the premises of one Belen Cabanero at New Frontier Village, Talisay, Cebu, but was issued to search the residence of herein private respondent Aiden Lanuza at 516 San Jose de la Montana St., Cebu City.[20]

We nonetheless find such error in the application for search warrant a negligible defect.

> The title of the questioned application, which reads:
>
> "PEOPLE OF THE PHILIPPINES, Plaintiff,
> - versus - SEARCH WARRANT NO. 958 (95)
>
> AIDEN LANUZA, For: Violation of Article
> 516 San Jose de la 40 (k) in relation to
> Montana Street, Mabolo, Article 41 of Republic
> Cebu City, Act No. 7394 (or the
> Defendant. Consumer Act).
>
> x - x"[21] (Emphasis supplied)

and the allegations contained therein, pertinent portions of which we quote:

> ". On June 5, 1995, in my official capacity as Attorney V and Chief of LICD, I received reports from SPO4 Manuel P. Cabiles of the Regional Intelligence Group IV, Intelligence Command of the PNP that certain -

1.a. Aiden Lanuza of 516 San Jose de la Montana Street, Mabolo, Cebu City sold to said Officer Cabiles various drug products amounting to Seven Thousand Two Hundred Thirty Two Pesos (P 7,232.00) on May 29, 1995;

1.b. Said Aiden Lanuza or her address at 516 San Jose de la Montana Street, Mabolo, Cebu City has no license to operate, distribute, sell or transfer drug products from the BFAD;

x x x x x x x x x

"2. In support of the report, the subscribed affidavit of Mr. Cabiles, his report and the various drug products sold and purchased contained in a (sic) plastic bags marked 'Lanuza Bag 1 of 1' and 'Lanuza Bag 2 of 2' were enclosed; and the same are likewise submitted herewith.

x x x x x x x x x." [22] (Emphasis supplied)

unmistakably reveal that the said application was specifically intended against private respondent Aiden Lanuza of 516 San Jose de la Montana Street, Mabolo, Cebu City. She has been the only one identified in the application, as well as in the aforequoted affidavit of SPO4 Manuel Cabiles upon which the application was based, as having allegedly sold to said SPO4 Cabiles various drugs amounting to P7,232.00 on May 29, 1995, without any license to do so, in alleged violation of Article 40 (k) of R.A. 7394. It is noteworthy that, as stated in the above-quoted paragraph 2 of the application, the plastic bags which contained the seized drugs and which were submitted together with the application, were marked as "**Lanuza** Bag 1 of 1" and "**Lanuza** Bag 2 of 2." These markings with the name "Lanuza" obviously refer to no other than the herein private respondent. And when the respondent Judge issued the search warrant, it was directed solely against private respondent Aiden Lanuza at her address: 516 San Jose de la Montana Street, Mabolo, Cebu City.

The Solicitor General explained the error in the application by saying that on the same day applicant Atty. Lorna Frances Cabanlas filed the questioned application on June 27, 1995, another application for search warrant was also filed against one Belen Cabanero at her residence at New Frontier Village, Talisay, Cebu City. This can be deduced from the following examination conducted by respondent Judge on Atty. Cabanlas:

"

(COURT)

Q. And who is your respondent?

A. Mrs. Aiden Lanuza and the other one is Belen Cabanero.

Q. Where are they situated?

A. Mrs. Lanuza is situated in No. 516 San Jose de la Montana Street, Mabolo, Cebu City.

Q. About the other?

A. New Frontier Village, Talisay, Cebu.

Q. Do you have any specific address at New Frontier Village?

A. It was reported by Mr. Manuel Cabiles.

Q. Will he be testifying?

A. Yes Ma'am. Your Honor, this is the vicinity of the New Frontier Village, Cebu (witness presenting a sketch) (sic)

Q. How about this San Jose de la Montana. This is just in Cebu City?

A. At 516 San Jose de la Montana Street, Mabolo, Cebu City."[23]

From the foregoing discussion, it is obvious that the name and address of one Belen Cabanero were erroneously copied in paragraph 3 of the application in question. Such defect, as intimated earlier, is not of such a gravity as to call for the invalidation of the search warrant.

There are, however, two (2) serious grounds to quash the search warrant.

Firstly, we cannot fault the respondent Judge for nullifying the search warrant as she was not convinced that there was probable cause for its issuance due to the failure of the applicant to present **documentary proof** indicating that private respondent Aiden Lanuza had no license to sell drugs.

It must be noted that in the application for search warrant, private respondent is charged with the specific offense of selling drugs **without the required license from the Department of Health,** which is in violation of Article 40 (k) of R. A. 7394, and penalized under Article 41 thereof. The said application was supported by the affidavit of SPO4 Manuel Cabiles where, in paragraph 3 thereof, he declared that he made a **"verification in the BFAD registry of licensed persons or premises"** and **discovered** that private respondent Aiden Lanuza had **"no license"** to sell drugs.

We agree with the respondent Judge that applicant Atty. Lorna Frances Cabanlas should have submitted documentary proof that private respondent Aiden Lanuza had no such license. Although no explanation was offered by respondent Judge to support her posture, we hold that to establish the existence of probable cause sufficient to justify the issuance of a search warrant, the applicant must show **facts** and circumstances which would lead a reasonably discreet and prudent man to believe that an offense has been committed and that the objects sought in connection with the offense are in the place sought to be searched."[24]

The **facts** and circumstances that would show probable cause must be the **best evidence that could be obtained under the circumstances.** The introduction of such evidence is necessary **especially in cases where the issue is the existence of the negative ingredient of the offense charged** - for instance, the absence of a license required by law, as in the present case - **and such evidence is within the knowledge and control of the applicant** who could easily produce the same. But if the best evidence could not be secured at the time of application, the applicant must show a justifiable reason therefor during the examination by the judge. The necessity of requiring stringent procedural safeguards before a search warrant can be issued is to give meaning to the constitutional right of a person to the privacy of his home and personalties. As well stated by this Court through former Chief Justice Enrique Fernando in **Villanueva vs. Querubin:**[25]

"It is deference to one's personality that lies at the core of this right, but it could be also looked upon as a recognition of a constitutionally protected area, primarily one's home but not necessarily thereto confined (Cf. Hoffa v. United States, 385 U.S. 293 [1966]). What is sought to be guarded is a man's prerogative to choose who is allowed entry to his residence. In that haven of refuge, his individuality can assert itself not only in the choice of who shall be welcome but likewise in the kind of objects he wants around him. There the state, however powerful, does not as such have access except under the circumstances above noted, for in the traditional formulation, his house, however humble, is his castle. Thus is outlawed any unwarranted intrusion by government, which is called upon to refrain from any invasion of his dwelling and to respect the privacies of his life (Cf. Schmerber v. California, 384 US 757, Brennam, J. and Boyd v. United States, 116 US 616, 630). In the same vein, Landynski in his authoritative work, Search and Seizure and the Supreme Court (1966), could fitly characterize this constitutional right as the embodiment of a spiritual concept: the belief that to value the privacy of home and person and to afford its constitutional protection against the long reach of government is no less than to value human dignity, and that his privacy must not be disturbed except in case of overriding social need, and then only under stringent procedural safeguards (Ibid, p. 47)." (Emphasis supplied)

In the case at bar, the **best** evidence **procurable under the circumstances** to prove that private respondent Aiden Lanuza had no license to sell drugs is the **certification** to that effect from the Department of Health. SPO4 Manuel could have easily procured such certification when he went to the BFAD to verify from the registry of licensed persons or entity. No justifiable reason was introduced why such certification could not be secured. Mere allegation as to the non-existence of a license by private respondent is not sufficient to establish probable cause for a search warrant. The presumption of regularity cannot be invoked in aid of the process when an officer undertakes to justify it.[26] We apply by analogy our ruling in **20th Century Fox Film Corporation vs. Court of Appeals, et. al.:**[27]

"The presentation of the master tapes of the copyrighted films from which the pirated films were allegedly copied, was necessary for the validity of search warrants against those who have in their possession the pirated films. **The petitioner's argument to the effect that the presentation of the master tapes at the time of application may not be necessary as these would be merely evidentiary in nature and not determinative of whether or not a probable cause exists to justify the issuance of the search warrants is not meritorious. The court cannot presume that duplicate or copied tapes were necessarily reproduced from master tapes that it owns.**

"The application for search warrants was directed against video tape outlets which allegedly were engaged in the unauthorized sale and renting out of copyrighted films belonging to the petitioner pursuant to P.D. 49.

"The essence of a copyright infringement is the similarity or at least substantial similarity of the purported pirated works to the copyrighted work. Hence, **the applicant must present to the court the copyrighted films** to compare them with the purchased evidence of the video tapes allegedly pirated to determine whether the

latter is an unauthorized reproduction of the former. **This linkage** of the copyrighted films to the pirated films **must be established to satisfy the requirements of probable cause. Mere allegations as to the existence of the copyrighted films cannot serve as basis for the issuance of a search warrant."** (Emphasis supplied)

Secondly, the place sought to be searched had not been described with sufficient particularity in the questioned search warrant, considering that private respondent Aiden Lanuza's residence is actually located at **Lot No. 41,** 516 San Jose de la Montana St., Mabolo, Cebu City, while the drugs sought to be seized were found in a **warehouse** at **Lot No. 38** within the same compound. The said warehouse is owned by a different person. Again, the respondent Judge is correct on this point.

This Court has held that the applicant should particularly describe the place to be searched and the person or things to be seized, **wherever and whenever it is feasible.**[28] In the present case, it must be noted that the application for search warrant was accompanied by a sketch[29]of the compound at 516 San Jose de la Montana St., Mabolo, Cebu City. The sketch indicated the 2-storey residential house of private respondent with a large "X" enclosed in a square. Within the same compound are residences of other people, workshops, offices, factories and warehouse. With this sketch as the guide, it could have been very easy to describe the residential house of private respondent **with sufficient particularity so as to segregate it from the other buildings or structures inside the same compound.** But the search warrant merely indicated the address of the compound which is 516 San Jose de la Montana St., Mabolo, Cebu City. This description of the place to be searched is too general and does not pinpoint the specific house of private respondent. Thus, the inadequacy of the description of the residence of private respondent sought to be searched has characterized the questioned search warrant as a general warrant, which is violative of the constitutional requirement.

While the questioned search warrant had all the characteristic of a **general** warrant, it was correctly implemented. For, the searching team went directly to the house of private respondent Aiden Lanuza located at Lot No. 41 inside the compound known as 516 San Jose de la Montana Street, Mabolo, Cebu City. However, the team did not find any of the drug products which were the object of the search. Frustrated, and apparently disappointed, the team then proceeded to search a nearby warehouse of Folk Arts Export & Import Company owned by one David Po located at Lot No. 38 within the same compound. It was in the warehouse that drug products were found and seized which were duly receipted. In the Joint Affidavit of SPO2 Fructuoso Bete, Jr. and SPO2 Markbilly Capalungan, members of the searching team, is a statement that the confiscated 52 cartons of assorted medicines were found in the **possession and control** of private respondent Aiden Lanuza. This is a blatant falsehood and is aggravated by the fact that this was committed by officers sworn to uphold the law. In searching the warehouse of Folk Arts Export & Import Company owned by one David Po, the searching team went beyond the scope of the search warrant. As the trial court aptly observed:

"x x x. The verified motion to quash and reply also show that the search at the house of defendant-movant yielded negative result and the confiscated articles were taken from another place which is the warehouse of Folk Arts Import and Export Company owned by another person. In the return of the search warrant, it is stated that Search Warrant No. 958 (95) was served at the premises of 516 San Jose dela Montana St., Cebu City and that during the search, drug products were found and seized therefrom

> which were duly receipted. Accompanying said return is the Joint Affidavit of two (2) members of the searching team, namely: SPO2 Froctuoso Bete and SPO2 Markbilly Capalingan, both of the 7th Criminal Investigation Command, PNP, with station at Camp Sotero Cabahug, Gerardo Avenue, Cebu City which also mentioned only the address as 516 San Jose dela Montana St., Mabolo, Cebu City and the confiscation of 52 cartoons(sic) of assorted medicines purportedly from the possession and control of defendant-movant. However, as indicated in the sketch attached to the application for search warrant, said Folk Arts Import and Export Company is owned by one David Po, which is a concrete proof that the searching team exceeded their authority by conducting a search not only in the residence of defendant-movant Lanuza but also in another place which the applicant itself has identified as belonging to another person, David Po. The foregoing are strong reasons to support the conclusion that there has been an unreasonable search and seizure which would warrant the quashal of the search warrant."[30]

The respondent Judge acted correctly in granting the motion to quash the search warrant.

WHEREFORE, the petition is hereby **DENIED.** The Temporary Restraining Order issued in a resolution dated June 26, 1996 is hereby **LIFTED.**

SO ORDERED.

Regalado, J., (Chairman) , Melo, Puno, and Mendoza, JJ., concur.

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[1] Annex "A," Petition; Rollo pp. 58-59. Atty. Cabanlas' affidavit which is exactly the same as Annex "A" is attached to the application as Annex "B," Rollo, p.60.

[2] Ibid.

[3] Annex "C." Petition; Rollo p. 61.

[4] Annex "D," Petition; Rollo, p. 63.

[5] Annex "E," Petition; Rollo, p.64.

[6] Annex "F," Petition; Rollo, p. 65.

[7] Annex "F," Petition; Rollo, p. 65.

[8] Petition, pp. 5-6; Rollo, pp. 10-11.

[9] Annex "G," Petition; Rollo, pp. 66-70.

[10] Annex "H," Petition; Rollo, pp. 71-87.

[11] Rollo, pp. 71-72.

[12] Annex "M," Petition; Rollo, pp. 139-149.

[13] Annex "I," Petition; Rollo, pp. 88-91.

[14] Ibid., pp. 90-91.

[15] Annex "K," Petition; Rollo, p. 137.

[16] Petition, pp. 9-10; Rollo, pp. 14-15.

[17] Rollo, pp. 150-152.

[18] Rollo, pp. 161-191.

[19] Rollo, p. 224.

[20] Assailed order dated Dec. 7, 1995, rollo, pp. 88-89.

[21] Annex "A," Petition; Rollo, p. 58.

[22] Annex "A," Petition; Rollo pp. 58-59. Atty. Cabanlas' affidavit which is exactly the same as Annex "A" is attached to the application as Annex "B," Rollo, p.60.

[23] TSN, June 27, 1995, pp. 3-4, cited in the Petition, p. 15; Rollo, p. 20.

[24] Burgos, Sr., et. al. vs. Chief of Staff, AFP, et. al., 133 SCRA 800, 813 [1984].

[25] 48 SCRA 345, 350, cited also in People vs. Burgos, 144 SCRA 1, 1 [1986].

[26] Mata vs. Bayona, 128 SCRA 388, 393-394 [1984]; Nolasco vs. Puno, 139 SCRA 155, 166.

[27] 164 SCRA 655, 663-664 [1988].

[28] People vs. Veloso, 48 Phil. 169, 182 [1925].

[29] Annex "D," Petition; Rollo, p. 63.

[30] Rollo, pp. 89-90.

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